

the agreement by failing to make all required payments on her account; and (4) that breach resulted in damages in the amount of \$28,080.61. Plaintiff is accordingly entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

All future hearing dates are VACATED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509126	KITA VS SCHWARTZ	MOTION TO AMEND JUDGMENT BY JEFFERSON KITA

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.